

26TRCV00670 26TRCV00670

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26TRCV00670 Hearing Date: July 13, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

CHRISTINE MARIE STEWART

;

Plaintiff,

vs.

HAWTHORNE SCHOOL DISTRICT

, et al.;

Defendants.

Case

No.:

26TRCV00670

Hearing

Date:

July
13, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANT CITY OF HAWTHORNE'S DEMURRER

MOVING PARTY: Defendant, City of Hawthorne

RESPONDING PARTY: Plaintiff, Christine Marie Stewart

(1)

Defendant

City of Hawthorne's Demurrer is OVERRULED pursuant to Code of Civil Procedure section 430.10.

The Court considers the moving papers filed on June 5, 2026, the opposition brief filed on June 29, 2026, and the reply brief filed on July 6, 2026.

BACKGROUND

Factual Background

On February 24, 2026, plaintiff Christine Marie Stewart ("Plaintiff") filed the Complaint against defendants Hawthorne School District ("HSD"), City of Hawthorne ("the City"), and DOES 1 through 20. The Complaint includes the following causes of action: (1) Racial/Disability Discrimination (California Gov. Code § 12941 et seq.); (2) Gender Discrimination (California Gov. Code § 12941 et seq.); (3) Retaliation in Violation of Government Code § 12940(h) & Labor Code § 1102.5; (4) Harassment Based on Race/Gender/Disability in Violation of Government Code § 12923 et seq.; (5) Failure to Engage in the Interactive

Process and to Provide Reasonable Accommodations; (6) Failure to Take All Reasonable Steps Necessary to Prevent Discrimination and Harassment from Occurring (California Government Code § 12940(k)); and (7) Wrongful Termination in Violation of FEHA (Government Code § 12940(h) et seq.).

On April 22, 2026, the City's counsel emailed Plaintiff's counsel to assert that the City did not employ Plaintiff and that the City and HSD are separate entities. (Declaration of Jennie M. Kelly ("Kelly Decl."), ¶ 2, Exh. 1.) The City's counsel requested a conversation with Plaintiff's counsel to discuss these matters. (Kelly Decl., ¶ 2, Exh. 1.) Subsequently, on April 24, 2026, the City's counsel issued a meet-and-confer letter to Plaintiff's counsel, aimed at addressing the alleged deficiencies. (Kelly Decl., ¶ 3, Exh. 2.) However, Plaintiff's counsel did not respond to either letter. (Kelly Decl., ¶¶ 2-3.)

REQUEST FOR JUDICIAL NOTICE

Filed concurrently with its moving papers, the City has filed a Request for Judicial Notice ("RJN"), requesting this Court take judicial notice of:

1.
City's Codified Ordinance, Title One, Chapter 1.08, section 1.08.010; and

2.
City's Codified Ordinance, Title One, Chapter 2.02, section 2.02.010.

The Court GRANTS this request. The Court takes judicial notice of these ordinances as "[r]egulations and legislative enactments issued by or under the authority of the United States or any public entity in the United States[.]" in accordance with Evidence Code section 452, subdivision (b). However, the Court will not take judicial notice of the truth of the matters presented in these documents since they are subject to interpretation. (See *L.B. Research & Education Foundation v. UCLA Foundation* (2005) 130 Cal.App.4th 171, 180, fn. 2, citing *Comings v. State Bd. of Education* (1972) 23 Cal.App.3d 94.)

LEGAL STANDARD

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967.) A demurrer "does not admit contentions, deductions or conclusions of fact or law." (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty may lie if the failure to label the parties and claims renders the complaint so confusing that the defendant cannot tell what he or she is supposed to respond to. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.) However, "[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

MEET AND CONFER REQUIREMENT

Before filing a demurrer, the moving party is required to meet and confer in person, by telephone, or via video conference with the party who filed the pleading that is subject to the motion, to determine whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (Code Civ. Proc., § 430.41, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., § 430.41, subd. (a)(2).) Thereafter, the moving party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 430.41, subd. (a)(3).) A determination by the court that the meet and confer process was inadequate shall not be grounds to overrule or sustain a

demurrer. (Code Civil Proc., § 430.41, subd. (a)(4).)

On April 22, 2026, the City's counsel emailed Plaintiff's counsel to assert that the City did not employ Plaintiff and that the City and HSD are separate entities. (Kelly Decl., ¶ 2, Exh. 1.) The City's counsel requested a conversation with Plaintiff's counsel to discuss these matters. (Kelly Decl., ¶ 2, Exh. 1.) Subsequently, on April 24, 2026, the City's counsel issued a meet-and-confer letter to Plaintiff's counsel, aimed at addressing the alleged deficiencies. (Kelly Decl., ¶ 3, Exh. 2.) However, Plaintiff's counsel did not respond to either letter. (Kelly Decl., ¶¶ 2-3.)

Consequently, the Court finds that the City made sufficient attempts to meet and confer with Plaintiff prior to filing this demurrer.

DISCUSSION

Employment Relationship

The City demurs to the entirety of the Complaint on the grounds that Plaintiff fails to allege an employment or applicant relationship with the City. (Dem., pp. 8:7-9:19.)

"[B]ecause under the Tort Claims Act all governmental tort liability is based on statute, the general rule that statutory causes of action must be pleaded with particularity is applicable. Thus, 'to state a cause of action against a public entity, every fact material to the existence of its statutory liability must be pleaded with particularity.' [Citations.]" (Lopez v. Southern Cal. Rapid Transit Dist. (1985) 40 Cal.3d 780, 795.)

"In general, FEHA is designed to prevent and deter unlawful employment practices, and to redress their adverse effects. [Citations.] Essential to plaintiff's statutory claims is the existence of 'an employment relationship.' [Citation.]" (Patterson v. Domino's Pizza, LLC (2014) 60 Cal.4th 474, 599.) "[T]he FEHA confers employee status on those

individuals who have been appointed, who are hired under express or implied contract, or who serve as apprentices.”
(Estrada v. City of Los Angeles (2013) 218 Cal.App.4th 143, 149.)

First, the City specifically contends that “the Complaint does not allege that the City hired, appointed or employed Plaintiff, does not alleged that the City paid Plaintiff’s wages, salary, or benefits, that the City supervised Plaintiff’s work, controlled the terms and conditions of Plaintiff’s employment or exercised management authority over Plaintiff.” (Dem., pp. 8:27-9:5.)

Yet, in the Complaint, Plaintiff alleges: “At all relevant times herein, defendants HSD, [the City] and ROES 1 to 20, inclusive, and each of them, inclusive were the employer of Plaintiff and were listed as such on Plaintiffs W-2 forms and pay stubs pursuant to Government Code §12968 and Labor Code §226.” (Compl., ¶ 7.) Thus, Plaintiff asserts that the City was one of her employers, as it is identified on her W-2 forms and pay stubs.

Here, the Court finds this factual assertion sufficient to establish an employer relationship at the pleading stage.

Second, the City contends that this allegation is insufficient, drawing a comparison to Shields v. County of San Diego (1984) 155 Cal.App.3d 103, 113 (Shields), in which the Court of Appeal determined that the plaintiff offered “no allegations sufficient to infer there was, in fact, an employment or independent contractor relationship between County and the other defendants.” (Dem., p. 5:23-28.) However, the conclusion in Shields stemmed from the plaintiff merely alleging that “Sun Harbor and Westgate were ‘independent contractors’ of County, that all defendants were agents and employees of one another, and that County ‘caused the commencement of an enterprise’ which harmed the plaintiff.”
(Shields, supra, 155 Cal.App.3d at p. 113.) In contrast, Plaintiff provides a specific factual basis by stating that the City is listed as her employer on her W-2 and pay stubs, which is sufficient to infer an employment relationship.

Accordingly, the demurrer is
OVERRULED on this basis.

Separate Legal Entities

Moreover, the City demurs to the entirety of the Complaint on the grounds that the City and HSD “are separate public entities with distinct legal status, governance structures, and operational responsibilities.” (Dem., pp. 9:22-23.)

Here, the City contends that Plaintiff must establish alter-ego liability, a joint-employer relationship between the City and HSD, or an agency theory that would render the City liable for HSD’s actions due to their status as separate legal entities. (Dem., pp. 10:15-11:18.) However, the City does not adequately explain why the distinct legal status of these entities should result in the demurrer being sustained for the entire Complaint, particularly when Plaintiff has sufficiently alleged that both are her employers.

Accordingly, the demurrer is
OVERRULED on this basis.

Seventh Cause of Action - Wrongful
Termination in Violation of FEHA (Government Code § 12940(h) et seq.)

Finally, the City demurs to the seventh cause of action for wrongful termination in violation of FEHA (Government Code § 12940(h) et seq.) on the grounds that (1) Plaintiff fails to plead any factual assertions that demonstrate she was an employee of the City and (2) the cause of action is barred on the grounds that a common law tort claim for wrongful termination cannot be asserted against a public entity. (Dem., pp. 11:19-12:27.)

As discussed above, the Plaintiff has met the first ground. With respect to the second ground, Government Code section 815 provides: “Except as otherwise provided by statute[,] ... [a] public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.” (Gov. Code, § 815.) “In short, sovereign immunity is the rule in California; governmental liability is limited to exceptions specifically set forth by statute.” (Cochran v. Herzog Engraving Co. (1984) 155 Cal.App.3d 405, 409.)

Here, Plaintiff contends that “In

performing the acts and omissions alleged hereinabove, the defendants, and each of them, have violated public policy and the guarantees and provisions of law embodied in California Government Code, §§12940, 12945 et seq.; California Labor Code §233; California Constitution, Article I, §8; relevant provisions of the California Fair Employment and Housing Act; and relevant provisions of the California Family Rights Act in that defendants, and each of them, have discriminated against and harassed Plaintiff on the basis of Plaintiffs race, sex, gender and/or any related characteristics.”

(Compl., ¶ 111.) Consequently, Plaintiff is not alleging a common law wrongful termination.

In the reply brief, the City introduces a new argument asserting that Plaintiff cannot “plead a wrongful termination claim under FEHA’s retaliation cause of action or under Labor Code section 1102.5[.]” (Reply, pp. 8:26-9:1.) The Court observes that Plaintiff is not asserting a wrongful termination claim under Labor Code section 1102.5. Rather, she is presenting a wrongful termination claim under Government Code sections 12940 and 12945 et seq., in addition to California Labor Code section 233. As such, Plaintiff has met the second ground, and the demurrer is OVERRULED on this basis.

Accordingly, the City’s demurrer is OVERRULED.

ORDERS

1) Defendant
City of Hawthorne’s Demurrer is OVERRULED.

2) The
City is ordered to provide notice of this Court’s ruling.

IT IS SO ORDERED.

DATED: July 13, 2026

Tamara
Hall

Judge
of the Superior Court